

STATE OF MICHIGAN
THIRD JUDICIAL CIRCUIT
WAYNE COUNTY

ADRIENNE MARJORIE ROCKENHAUS,
Petitioner,

v Case No. 26-102221-PP

Hon. Yvonna C. Abraham

CONRAD ALAN ROCKENHAUS,
Respondent.

_____/

RESPONDENT'S MOTION FOR ISSUANCE OF SUBPOENA FOR WITNESS TESTIMONY

TO THE HONORABLE COURT:

COMES NOW Respondent Conrad Alan Rockenhaus, appearing pro se, and respectfully moves this Court for an order directing the issuance of a subpoena commanding the appearance of witness Ann Helgren to testify at the Personal Protection Order hearing scheduled for April 29, 2026, and in support thereof states:

I. NATURE OF PROCEEDING AND REQUESTED RELIEF

1. This matter involves Petitioner's request for a Personal Protection Order against Respondent, with a hearing scheduled for April 29, 2026 at 11:30 AM via Zoom before this Honorable Court.
2. Respondent seeks issuance of a witness subpoena under MCR 2.506 compelling Ann Helgren to appear and testify at said hearing regarding material facts within her direct knowledge.
3. This motion is made pursuant to MCR 2.506 (subpoenas for witnesses), MCR 2.305 (scope of discovery), and the Court's inherent authority to compel witness testimony necessary for the determination of contested facts.

II. FACTUAL BACKGROUND

4. Ann Helgren is a material witness to events occurring on March 2, 2026, the date of Respondent's release from federal custody.
5. Ms. Helgren has direct, first-hand knowledge of communications and instructions allegedly given by Petitioner on March 2, 2026, including:
 - a. Instructions to Ms. Helgren to provide false information to law enforcement regarding Respondent's residence;
 - b. Instructions to Ms. Helgren to contact the Department of Veterans Affairs with false claims regarding Respondent's mental health status;
 - c. Observations of service of process by law enforcement at an incorrect address.
6. These communications and events are directly relevant to the credibility of Petitioner's claims and the factual basis underlying the Personal Protection Order petition.
7. Ms. Helgren's testimony is necessary to establish a complete and accurate record regarding the events of March 2, 2026, and the conduct of both parties on that date.

III. LEGAL STANDARDS AND AUTHORITY

8. Under MCR 2.506(A), a subpoena may be issued by the court to compel the attendance of witnesses at hearings.
9. Witness testimony is properly compelled when the witness has material, relevant knowledge regarding disputed facts in the proceeding. *People v Phillips*, 217 Mich App 489, 552 NW2d 487 (1996).
10. The Court has broad discretionary authority to compel witness testimony necessary for the fair

adjudication of contested proceedings. MCR 2.506; *Kozel v Ostrow*, 272 Mich App 168, 724 NW2d 259 (2006).

IV. GROUNDS FOR RELIEF

A. Relevance and Materiality

11. Ms. Helgren's testimony is directly relevant to central factual disputes in this proceeding, including:
 - a. The circumstances surrounding Respondent's release from federal custody on March 2, 2026;
 - b. Petitioner's conduct and communications on March 2, 2026;
 - c. The accuracy and reliability of Petitioner's representations to law enforcement and governmental agencies;
 - d. The factual basis for Petitioner's claims regarding fear or need for protection.

B. Necessity

12. Ms. Helgren is the only witness with direct, first-hand knowledge of the specific communications and events occurring on March 2, 2026.
13. Her testimony cannot be obtained through other means, as she is the sole witness to the relevant communications between herself and Petitioner.
14. The testimony is necessary to establish material facts that are disputed between the parties and essential to the fair adjudication of this proceeding.

C. Proportionality and Reasonableness

15. The burden on Ms. Helgren of appearing via Zoom for limited testimony is minimal and proportionate to the importance of her testimony.
16. As a witness appearance subpoena under MCR 2.506, rather than a discovery subpoena duces tecum, this request avoids the heightened notice requirements of MCR 2.305(A)(2).
17. The timing, while close to the hearing date, is necessitated by the recent development of the case and the importance of Ms. Helgren's testimony to the fair resolution of disputed facts.

V. SUBPOENA SPECIFICATIONS

18. Respondent requests the Court direct the issuance of a witness subpoena commanding:

WITNESS: Ann Helgren

ADDRESS: [To be provided with current address]

APPEARANCE: April 29, 2026 at 11:30 AM

METHOD: Via Zoom (connection details to be provided by the Court)

PURPOSE: To testify regarding events occurring on March 2, 2026, including communications with Petitioner and observations of law enforcement service of process.

VI. PROCEDURAL COMPLIANCE

19. This motion is filed in accordance with local court protocols as communicated by the Court's chambers on April 24, 2026.
20. Pursuant to MCR 2.119(C), Respondent will seek concurrence from opposing counsel before requesting a hearing on this motion.
21. Service of this motion will be made upon opposing counsel in accordance with applicable court rules.

VII. CONCLUSION AND PRAYER FOR RELIEF

WHEREFORE, Respondent respectfully requests this Honorable Court:

A. GRANT this Motion and direct the issuance of a subpoena commanding Ann Helgren to appear and testify at the Personal Protection Order hearing scheduled for April 29, 2026 at 11:30 AM via Zoom;

B. Authorize service of said subpoena upon Ms. Helgren in accordance with MCR 2.506;

C. Award such other and further relief as this Court deems just and proper.

Respectfully submitted,

Conrad Alan Rockenhaus (P-___)

Respondent Pro Se

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Motion for Issuance of Subpoena for Witness Testimony was served upon opposing counsel via electronic mail on April __, 2026:

Lisa Baker (P-82555)

lisabaker@aldrichlegalservices.com

Kristen Sinkiewicz

kris@aldrichlegalservices.com

Conrad Alan Rockenhaus

Dated: April __, 2026

ATTACHED:

Proposed MC 11 Subpoena Form - Completed for Ann Helgren witness appearance, April 29, 2026 hearing

Filed: April __, 2026

Served: April __, 2026 via electronic mail

Case: 26-102221-PP

Judge: Hon. Yvonna C. Abraham